

25STCV12313 25STCV12313

County: los-angeles

Division: Civil Law and Motion

Department: 729

Hearing date: 2026-07-22

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Case Number: 25STCV12313 Hearing Date: July 22, 2026 Dept: 729

Superior Court of California

County of Los Angeles

DEPARTMENT

729

TENTATIVE RULING

EMA BELL,

vs.

HOBBY LOBBY

STORES, INC.

Case No.: 25STCV12313

Hearing

Date: July 22, 2026

Plaintiffs

Ema Bell's and Gabriel Espinoza's unopposed motion to approve and enter consent judgment is continued to September 28, 2026, at 8:30 a.m.

Plaintiffs

are ordered to file supplemental briefing on or before August 21, 2026, at 5:00 PM, to produce evidence sufficient for this Court to sustain each required

finding. (Health & Safety Code
§25249.7(f)(5).)

Plaintiffs Ema Bell ("Bell")
and Gabriel Espinoza ("Espinoza") (collectively, "Plaintiffs") move for an
order approving and entering the [Proposed] Consent Judgment between Plaintiffs
and Defendant Hobby Lobby Stores, Inc. ("Hobby
Lobby") ("Defendant") in the instant Proposition 65 action. (Notice of Motion, pgs. 1-2; C.C.P. §664.6.)

Discussion

Health & Safety Code
§25249.6 provides, as follows: "No person in the course of doing business shall
knowingly and intentionally expose any individual to a chemical known to the
state to cause cancer or reproductive toxicity without first giving clear and
reasonable warning to such individual, except as provided in Section
25249.10."

"Reformulation of a product,
. . . or other changes in the defendant's practices that reduce or eliminate
the exposure to a listed chemical, in lieu of the provision of a warning, are
presumed to confer a significant benefit on the public." (11 CCR §3201(b)(2).)

Health & Safety Code
§25249.7(a) provides, as follows: "A person who violates or threatens to
violate Section 25249.5 or 25249.6 may be enjoined in any court of competent
jurisdiction."

"A person who has violated
Section 25249.5 or 25249.6 is liable for a civil penalty not to exceed two
thousand five hundred dollars (\$2,500) per day for each violation in addition
to any other penalty established by law. That civil penalty may be assessed and
recovered in a civil action brought in any court of competent
jurisdiction." (Health & Safety Code
§25249.7(b)(1).)

"In assessing the amount of a
civil penalty for a violation of this chapter, the court shall consider all of
the following: (A) The nature and extent of the violation. (B) The number of,
and severity of, the violations. (C) The economic effect of the penalty on the

violator. (D) Whether the violator took good faith measures to comply with this chapter and the time these measures were taken. (E) The willfulness of the violator's misconduct. (F) The deterrent effect that the imposition of the penalty would have on both the violator and the regulated community as a whole. (G) Any other factor that justice may require.”
(Health & Safety Code §25249.7(b)(2).)

Actions pursuant to Health

& Safety Code §25249.7 may be brought by a person in the public interest if both of the following requirements are met:

(1) The private action is commenced more than 60 days from the date that the person has given notice of an alleged violation of Section 25249.5 or 25249.6 that is the subject of the private action to the Attorney General and the district attorney, city attorney, or prosecutor in whose jurisdiction the violation is alleged to have occurred, and to the alleged violator. If the notice alleges a violation of Section 25249.6, the notice of the alleged violation shall include a certificate of merit executed by the attorney for the noticing party, or by the noticing party, if the noticing party is not represented by an attorney. The certificate of merit shall state that the person executing the certificate has consulted with one or more persons with relevant and appropriate experience or expertise who has reviewed facts, studies, or other data regarding the exposure to the listed chemical that is the subject of the action, and that, based on that information, the person executing the certificate believes there is a reasonable and meritorious case for the private action. Factual information sufficient to establish the basis of the certificate of merit, including the information identified in paragraph (2) of subdivision (h), shall be attached to the certificate of merit that is served on the Attorney General.

(2) Neither the Attorney General, a district attorney, a city attorney, nor a prosecutor has commenced and is diligently prosecuting an action against the violation.

(Health & Safety Code
§25249.7(d).)

“If there is a settlement of an action brought by a person in the public interest under subdivision (d), the plaintiff shall submit the settlement, other than a voluntary dismissal in

which no consideration is received from the defendant, to the court for approval upon noticed motion, and the court may approve the settlement only if the court makes all of the following findings:

(A) The warning that is required by the settlement complies with this chapter. (B) The award of attorney's fees is reasonable under California law. (C) The penalty amount is reasonable based on the criteria set forth in paragraph (2) of subdivision (b)." (Health & Safety Code §25249.7(f)(4).)

"The plaintiff subject to paragraph (4) has the burden of producing evidence sufficient to sustain each required finding. The plaintiff shall serve the motion and all supporting papers on the Attorney General, who may appear and participate in a proceeding without intervening in the case."
(Health & Safety Code §25249.7(f)(5), emphasis added.)

Plaintiffs provided proof that the motion and supporting papers were served on the Office of the Attorney General. (6/2/26 Proof of Service.) However, Plaintiffs failed to provide evidence sufficient to sustain the finding that the product in question, namely Defendant's (1) Brother Sister Design Studio® plush items for children sold under purchase order HL9200447, including but not limited to SKU Nos. 6278956, 6278964, and 6278972, that are manufactured, distributed, shipped into California and offered for sale in California by Defendant may expose users to phthalates including dissononyl phthalate ("DINP"); (2) Tape Measures, including but not limited to Sew Ology Quilters Tape Measures SKU No. 783993, that are manufactured, distributed, shipped into California and offered for sale in California by Defendant may expose users to phthalates including di(2-ethylhexyl) phthalate ("DEHP"); and (c) Durable Storage Bags with Shells, including but not limited to the Large Shell Gift Plastic Bag SKU No. 375238, that are manufactured, distributed, shipped into California and offered for sale in California by Hobby Lobby that expose may users to phthalates including DEHP and/or DINP at levels actionable pursuant to Health & Safety Code §25249.7(d). Plaintiffs merely attach the Declaration of Evan J. Smith, the attorney on this case, wherein he declares that, "[p]rior to the issuance of the 60-Day Notice or the commencement of the Action, Plaintiffs' investigation concluded that Hobby Lobby has exposed California consumers to consumers to . . . DEHP and/or . . . DINP from its sales of (a) Brother Sister Design Studio® plush items for children sold under purchase order HL9200447, including but not limited to SKU Nos. 6278956, 6278964, and 6278972, that are manufactured, distributed, shipped into California and offered for sale in California by Hobby Lobby that may expose users to phthalates including DINP;

(6) Tape Measures, including but not limited to Sew Ology Quilters Tape Measures SKU No. 783993, that are manufactured, distributed, shipped into California and offered for sale in California by Hobby Lobby that may expose users to phthalates including DEHP; and (c) Durable Storage Bags with Shells, including but not limited to the Large Shell Gift Plastic Bag SKU No. 375238, that are manufactured, distributed, shipped into California and offered for sale in California by Hobby Lobby that expose may users to phthalates including DEHP (collectively, the 'Products' and each a 'Product') without first providing clear and reasonable exposure."

(Decl. of Smith ¶4.) Plaintiffs

do not attach any evidence of third-party certified laboratory testing results or any information detailing their investigation prior to the of the 60-Day Notice or the commencement of the Action.

Based on the foregoing,

Plaintiffs' motion to approve and enter consent judgment is continued to September 29, 2025, at 8:30 a.m.

Plaintiff is ordered to provide supplemental briefing to produce evidence sufficient for this Court to sustain each required finding.

Conclusion

Plaintiffs' unopposed motion

to approve and enter consent judgment is continued to September 28, 2026, at 8:30 a.m.

Plaintiffs are ordered to file

supplemental briefing on or before August 21, 2026, at 5:00 PM, to produce evidence sufficient for this Court to sustain each required finding. (Health & Safety Code §25249.7(f)(5).)

Moving Party is to give notice of this ruling.

Dated: July _____,
2026

Hon. Daniel M. Crowley

Judge of the Superior Court